tions applicable to vessels so arriving, insofar as such laws and regulations are applicable to aircraft.

§ 6.10c *Public health requirements*—(a) *Release by Public Health Service.* No passengers or persons employed on board any aircraft arriving from any place outside the United States or landing in an area from another area shall be permitted to leave the aircraft at the place of first landing or the airport of entry in the United States except by authority of the quarantine officer assigned thereto. Such aircraft and any mail, baggage, cargo, or other contents on board shall be held at such place or airport until released by such officer. (For procedure in the case of emergency or forced landing, see § 6.3 (d).)

(b) *Special sanitary treatment.* Any aircraft arriving from any foreign port or place which the quarantine officer declares to be of such menace that it cannot be adequately or safely handled at the airport of first or intended landing shall be required to proceed with all passengers and persons employed on board and all mail, baggage, cargo, or other contents on board, as may be designated by such officer, to an airport indicated by such officer to have adequate facilities for such treatment as shall be prescribed by him.

(c) *Entries in journey log book of arriving aircraft.* Any aircraft departing for the United States from any place outside thereof shall have entered in the journey log book[5] statements as to the occurrence of plague, cholera, yellow fever, typhus fever, and smallpox in the country from which the aircraft departed and in countries in which landings are made en route. There also shall be entered in the journey log book statements as to any sanitary measures undergone before departure or at such landings. These statements shall be verified and signed by the officers in charge of the airports from which the aircraft departed and at which it landed en route. In addition, the aircraft commander shall enter a statement as to the occurrence of any sickness among the passengers and persons employed on board and as to any sanitary treatment performed en route.

(d) *Spraying of arriving aircraft.* Any aircraft bound for the United States from any place in South America or tropical Africa, or from any other region where yellow fever may appear, shall be sprayed during flight with an insecticide approved by the Surgeon General of the Public Health Service. The spraying shall be performed as soon as possible after departure from the last foreign port, in accordance with such method as may be prescribed by the Surgeon General of the Public Health Service. The same provision applies to aircraft bound for the mainland of the United States from any United States insular port.

(e) *Statement of whereabouts of passengers and crew.* The commander of any aircraft arriving in the United States from any place in the Western Hemisphere located within the region bounded by 30° south latitude and 13° north latitude, or from any place in the African continent located within the region bounded by 8° south latitude and 16° north latitude, or from any other place where yellow fever may appear, shall furnish the quarantine officer with a written statement showing the whereabouts of all passengers and members of the crew for a period of 6 days prior to embarkation for the United States.

(f) *Importation of living disease organisms and vectors, shaving brushes, and parrots.* Importations of living disease organisms and vectors, of shaving or lather brushes, and of birds of the parrot family are subject to the special regulations prescribed therefor.[6]

(g) *Entries in journey log book of departing aircraft.* Any aircraft clearing from any area for any place outside the United States may obtain from the quarantine officer for entry in the journey log book information regarding the occurrence of plague, cholera, yellow fever, typhus fever, and smallpox in the area.

(h) *General provisions.* Except as otherwise provided in the regulations in this part, aircraft and the passengers, merchandise, and baggage carried thereon, arriving from any place outside the United States, shall be subject to the United States quarantine laws and regulations applicable to vessels so arriving, insofar as such laws and regulations are applicable to aircraft.

§ 6.10d *General provisions; entry and clearance.* All navigation laws and regulations pertaining to the entry and clearance of vessels shall apply to civil aircraft to such extent and upon such conditions as are specified in the regulations in this part.

§ 6.10e *Penalties.* (a) Any person violating any customs regulations relating to aircraft or any provision of the customs laws or regulations made applicable to aircraft by section 6.10b shall be subject to a civil penalty of $500, and any aircraft used in connection with any such violation shall be subject to seizure and forfeiture, as provided for in the customs laws. Such penalty and forfeiture may be remitted or mitigated by the Secretary of the Treasury.

(b) Any person violating any public health regulation relating to aircraft or any provision of the public health laws or regulations made applicable to aircraft by § 6.10c shall be subject to a civil penalty of $500, and any aircraft used in connection with such violation shall be subject to seizure and forfeiture, as provided for in the public health laws and section 11 (b) and (c) of the Air Commerce Act of 1926 (49 U.S.C. 181 (b), (c)). Such penalty and forfeiture may be remitted or mitigated by the Federal Security Administrator.

(c) Any person violating any of the provisions of the regulations in this part relating to the entry and clearance of aircraft under the laws and regulations administered by the Secretary of Commerce shall be subject to a civil penalty of $500, and any aircraft used in connection with any such violation shall be subject to seizure and forfeiture in accordance with the provisions of the Air Commerce Act of 1926, as amended. Such penalty and forfeiture may be remitted or mitigated by the Secretary of Commerce.

(d) For the penalty for any violation of the regulations in this part relating to immigration, see further regulations in 8 CFR Part 116 applying immigration laws and regulations to civil air navigation.

(e) Liability to penalties with respect to any one of the sets of laws, that is, the customs laws, the public health laws, the entry and clearance laws, and the immigration laws, under which the regulations in this part are prescribed, shall be separate from such liability with respect to any other set of such laws.[7]

§ 6.11 *Airports of entry; regulations.* (a) Airports of entry will be designated after due investigation to establish the fact that a sufficient need exists in any particular district or area to justify such designation and to determine the airport best suited for such purpose.

(b) A specific airport will be designated in each case, rather than a general area or district which may include several airports.

(c) The designation as an airport of entry may be withdrawn if it is found that the volume of business clearing through the port does not justify maintenance of inspection equipment and personnel, if proper facilities are not provided and maintained by the airport, if the rules and regulations of the Federal Government are not complied with, or if it be found that some other location would be more advantageous.

(d) Airports of entry shall be municipal airports, unless particular conditions which prevail warrant a departure from such requirement, and shall be possessed of a currently effective designation as a "Designated Landing Area" issued by the Administrator of Civil Aeronautics. Additional requirements may be imposed as the needs of the district or area to be served by the airport may demand.

(e) Airports of entry shall provide without cost to the Federal Government suitable office and other space for the exclusive use of Federal officials con-

[5] For this purpose, a journey log book is any document or book containing the following information: (1) nationality and identification marks of aircraft; (2) name and address of owner of aircraft; (3) name and address of commander of aircraft; (4) point of origin; (5) point of ultimate destination; (6) place and time of departure on trip; (7) intermediate stops and time of arrival at each stop; and (8) remarks; signed by the aircraft commander.

[6] Living disease organisms and vectors: Amendment No. 17 to Quarantine Regulations of the United States, March 4, 1938; 3 F.R. 555, March, 10, 1938.

Brushes: Amendment No. 18 to Quarantine Regulations of the United States; 4 F.R. 1287, March 22, 1939.

Parrots: Executive Order 5264, January 24, 1930; Foreign Quarantine Division Circular No. 67 and amendments; 4 F.R. 1766, May 3, 1939.

[7] With respect to other laws and regulations relating to aircraft, inquiry may be made of the collector of customs.